DORMDASH INDEPENDENT CONTRACTOR AGREEMENT

THIS INDEPENDENT CONTRACTOR AGREEMENT (“AGREEMENT”) IS ENTERED INTO AS OF THE DATE SIGNED BELOW BY AND BETWEEN DORMDASH, LLC (“DORMDASH,” “THE COMPANY,” “WE,” OR “OUR”) AND THE UNDERSIGNED INDIVIDUAL (“DRIVER,” “CONTRACTOR,” “YOU,” OR “YOUR”).

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1. RELATIONSHIP OF THE PARTIES

1.1 **INDEPENDENT CONTRACTOR STATUS**
DRIVER IS ENGAGED AS AN INDEPENDENT CONTRACTOR AND IS NOT AN EMPLOYEE, PARTNER, AGENT, OR REPRESENTATIVE OF DORMDASH. NOTHING IN THIS AGREEMENT SHALL BE CONSTRUED TO CREATE ANY RELATIONSHIP OF EMPLOYER-EMPLOYEE, JOINT VENTURE, OR PARTNERSHIP.

1.2 **NO AUTHORITY TO BIND DORMDASH**
DRIVER HAS NO AUTHORITY TO ENTER INTO CONTRACTS OR COMMITMENTS ON BEHALF OF DORMDASH OR REPRESENT THAT THEY HAVE SUCH AUTHORITY.

1.3 **CONTROL OVER WORK**
DRIVER RETAINS FULL CONTROL OVER THE MANNER, METHOD, AND MEANS OF COMPLETING DELIVERIES, SUBJECT ONLY TO THE REQUIREMENTS OF CUSTOMER ORDERS PLACED THROUGH THE DORMDASH PLATFORM.

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2. SERVICES PROVIDED

2.1 **SCOPE OF SERVICES**
DRIVER AGREES TO USE THEIR OWN VEHICLE TO PICK UP AND DELIVER ORDERS PLACED THROUGH THE DORMDASH APPLICATION OR WEBSITE (“PLATFORM”).

2.2 **SCHEDULING**
DRIVER IS FREE TO CHOOSE WHEN AND HOW OFTEN TO ACCEPT DELIVERY OPPORTUNITIES. DORMDASH IMPOSES NO SET HOURS, MINIMUM DELIVERIES, OR EXCLUSIVE WORK REQUIREMENTS.

2.3 **EQUIPMENT AND EXPENSES**
DRIVER IS RESPONSIBLE FOR PROVIDING AND MAINTAINING ALL TOOLS AND EQUIPMENT NECESSARY FOR DELIVERIES, INCLUDING VEHICLES, FUEL, INSURANCE, AND SMARTPHONES. DORMDASH SHALL NOT REIMBURSE ANY EXPENSES UNLESS EXPRESSLY AGREED IN WRITING.

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3. PAYMENT

3.1 **COMPENSATION**
DRIVER WILL RECEIVE PAYMENT FOR EACH COMPLETED DELIVERY AS SHOWN IN THE DORMDASH SYSTEM, LESS ANY APPLICABLE FEES.

3.2 **NO WITHHOLDING**
AS AN INDEPENDENT CONTRACTOR, DRIVER ACKNOWLEDGES RESPONSIBILITY FOR ALL FEDERAL, STATE, AND LOCAL TAXES, INCLUDING INCOME AND SELF-EMPLOYMENT TAXES. DORMDASH WILL NOT WITHHOLD TAXES OR MAKE EMPLOYMENT CONTRIBUTIONS.

3.3 **PAYMENT PROCESSING**
PAYMENTS ARE FACILITATED THROUGH DORMDASH'S PAYMENT PROCESSOR. DORMDASH IS NOT LIABLE FOR ANY PAYMENT DELAYS OR ISSUES CAUSED BY THIRD-PARTY PAYMENT SYSTEMS.

3.4 **ADJUSTMENTS AND DEDUCTIONS**
DORMDASH RESERVES THE RIGHT TO DEDUCT OR OFFSET AMOUNTS FROM DRIVER'S PAYMENT IN CASES OF TRANSACTION REVERSALS, CUSTOMER REFUNDS, FRAUDULENT ACTIVITY, OR DRIVER'S BREACH OF THIS AGREEMENT. NOTICE OF ANY DEDUCTION SHALL BE PROVIDED VIA EMAIL OR PLATFORM NOTIFICATION.

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4. INSURANCE AND LIABILITY

4.1 **DRIVER'S INSURANCE**
DRIVER MUST MAINTAIN VALID AUTOMOBILE LIABILITY INSURANCE AND COMPLY WITH ALL STATE VEHICLE REGISTRATION AND LICENSING REQUIREMENTS.

4.2 **ASSUMPTION OF RISK**
DRIVER UNDERSTANDS AND ASSUMES ALL RISKS ASSOCIATED WITH PERFORMING DELIVERIES, INCLUDING TRAFFIC ACCIDENTS, INJURIES, PROPERTY DAMAGE, OR LOSS.

4.3 **INDEMNIFICATION**
DRIVER AGREES TO INDEMNIFY, DEFEND, AND HOLD HARMLESS DORMDASH, ITS OFFICERS, OWNERS, EMPLOYEES, AND AFFILIATES FROM ANY CLAIMS, DAMAGES, LIABILITIES, LOSSES, OR EXPENSES (INCLUDING ATTORNEY FEES) ARISING FROM DRIVER'S ACTS OR OMISSIONS, VIOLATION OF LAW, OR DAMAGE CAUSED DURING PERFORMANCE OF DELIVERIES.

4.4 **DORMDASH NOT LIABLE**
DORMDASH SHALL NOT BE LIABLE FOR ANY DAMAGES, INJURIES, OR LOSSES ARISING OUT OF DRIVER'S PERFORMANCE OF DELIVERY SERVICES.

4.5 **DRIVING STANDARDS**
DRIVER AGREES TO OPERATE THEIR VEHICLE SAFELY, OBEY ALL TRAFFIC LAWS, AND REFRAIN FROM ANY CONDUCT THAT COULD ENDANGER OTHERS OR DAMAGE DORMDASH'S REPUTATION. DORMDASH MAY SUSPEND OR TERMINATE DRIVER'S ACCESS TO THE PLATFORM FOR UNSAFE DRIVING, UNPROFESSIONAL BEHAVIOR, OR CUSTOMER COMPLAINTS.

4.6 **CUSTOMER PROPERTY, ORDERS, AND MISDELIVERY**
ONCE AN ORDER IS IN THE POSSESSION OF DRIVER, DRIVER ASSUMES FULL RESPONSIBILITY FOR ITS SAFE AND TIMELY DELIVERY. IF AN ORDER IS MISDELIVERED, LOST, DAMAGED, OR DELIVERED TO THE WRONG CUSTOMER, DORMDASH MAY ISSUE A REFUND TO THE CUSTOMER AT ITS SOLE DISCRETION. IN SUCH CASES, DRIVER SHALL BE RESPONSIBLE FOR THE FULL COST OF THE ORDER AND ANY ASSOCIATED FEES, WHICH MAY BE DEDUCTED FROM FUTURE PAYMENTS. DORMDASH IS NOT RESPONSIBLE FOR ANY LOSSES RESULTING FROM DRIVER ERROR OR MISCONDUCT.

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5. COMPLIANCE WITH LAWS

DRIVER AGREES TO COMPLY WITH ALL APPLICABLE FEDERAL, STATE, AND LOCAL LAWS AND REGULATIONS, INCLUDING TRAFFIC LAWS, FOOD HANDLING STANDARDS, AND ANTI-DISCRIMINATION LAWS. DRIVER SHALL NOT ENGAGE IN ILLEGAL ACTIVITIES WHILE USING THE PLATFORM OR PERFORMING SERVICES.

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6. PLATFORM CONDUCT AND CONFIDENTIALITY

6.1 **CONFIDENTIALITY**
DRIVER AGREES NOT TO DISCLOSE OR USE ANY CONFIDENTIAL INFORMATION,

INCLUDING CUSTOMER DATA OR INTERNAL COMPANY INFORMATION, EXCEPT AS NECESSARY TO COMPLETE DELIVERIES.

6.2 **USE OF PLATFORM**
DRIVER AGREES TO USE THE DORMDASH PLATFORM SOLELY FOR RECEIVING AND COMPLETING DELIVERY REQUESTS. DRIVER SHALL NOT SHARE LOGIN INFORMATION, IMPERSONATE OTHERS, OR INTERFERE WITH PLATFORM OPERATIONS. DISPLAYING DORMDASH BRANDING DOES NOT IMPLY EMPLOYMENT OR AGENCY RELATIONSHIP.

6.3 **NON-SOLICITATION**
DURING THE TERM OF THIS AGREEMENT AND FOR SIX (6) MONTHS THEREAFTER, DRIVER SHALL NOT SOLICIT DORMDASH CUSTOMERS OR ATTEMPT TO PROVIDE DELIVERY SERVICES OUTSIDE THE PLATFORM OR CIRCUMVENT DORMDASH'S PAYMENT SYSTEM.

6.4 **REPUTATION AND CONDUCT**
DRIVER AGREES NOT TO ENGAGE IN CONDUCT THAT COULD DAMAGE DORMDASH'S REPUTATION, INCLUDING HARASSMENT, DISCRIMINATION, OR DISPARAGING STATEMENTS ABOUT THE COMPANY OR ITS USERS.

6.5 **DATA COLLECTION CONSENT**
DRIVER ACKNOWLEDGES AND CONSENTS THAT DORMDASH MAY COLLECT, PROCESS, AND RETAIN DATA RELATED TO DELIVERY PERFORMANCE, GPS LOCATION, AND COMMUNICATIONS WITH CUSTOMERS FOR SAFETY, PAYMENT VERIFICATION, AND QUALITY CONTROL PURPOSES.

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7. TERM AND TERMINATION

7.1 **TERM**
THIS AGREEMENT BEGINS UPON DRIVER'S ACCEPTANCE AND CONTINUES UNTIL TERMINATED BY EITHER PARTY.

7.2 **TERMINATION**
EITHER PARTY MAY TERMINATE THIS AGREEMENT AT ANY TIME, WITH OR WITHOUT CAUSE, BY WRITTEN OR ELECTRONIC NOTICE.

7.3 **EFFECT OF TERMINATION**
UPON TERMINATION, DRIVER MUST CEASE USING THE PLATFORM, RETURN OR DELETE ANY COMPANY MATERIALS, AND DELETE ANY CONFIDENTIAL INFORMATION. ANY UNPAID AMOUNTS OWED TO DORMDASH AS A RESULT OF DEDUCTIONS OR MISDELIVERY SHALL REMAIN DUE AFTER TERMINATION.

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8. GOVERNING LAW

THIS AGREEMENT SHALL BE GOVERNED BY AND CONSTRUED IN ACCORDANCE WITH THE LAWS OF THE STATE OF CALIFORNIA. THE PARTIES CONSENT TO THE EXCLUSIVE JURISDICTION OF STATE AND FEDERAL COURTS LOCATED IN LOS ANGELES COUNTY, CALIFORNIA FOR ANY DISPUTE ARISING UNDER THIS AGREEMENT.

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9. MISCELLANEOUS

9.1 **ENTIRE AGREEMENT**
THIS DOCUMENT REPRESENTS THE FULL UNDERSTANDING BETWEEN THE PARTIES AND SUPERSEDES ALL PRIOR AGREEMENTS.

9.2 **AMENDMENTS**
DORMDASH MAY MODIFY THIS AGREEMENT UPON NOTICE TO DRIVER. CONTINUED USE OF THE PLATFORM CONSTITUTES ACCEPTANCE OF SUCH MODIFICATIONS.

9.3 **SEVERABILITY**
IF ANY CLAUSE IS FOUND INVALID OR UNENFORCEABLE, THE REMAINDER OF THIS AGREEMENT SHALL REMAIN IN EFFECT.

9.4 **HEADINGS, COUNTERPARTS, AND SURVIVAL**
SECTION HEADINGS ARE FOR CONVENIENCE ONLY AND DO NOT AFFECT INTERPRETATION. THIS AGREEMENT MAY BE EXECUTED ELECTRONICALLY AND IN COUNTERPARTS. SECTIONS REGARDING CONFIDENTIALITY, INDEMNIFICATION, DATA, AND LIMITATION OF LIABILITY SHALL SURVIVE TERMINATION.

9.5 **ELECTRONIC ACCEPTANCE**
BY CLICKING “ACCEPT,” CHECKING AN AGREEMENT BOX, OR OTHERWISE ELECTRONICALLY ACKNOWLEDGING THIS AGREEMENT, DRIVER CONSENTS TO BE LEGALLY BOUND BY ITS TERMS. ELECTRONIC ACCEPTANCE OR SIGNATURE SHALL HAVE THE SAME LEGAL EFFECT AS A HANDWRITTEN SIGNATURE.

INFO:

DRIVER SIGNATURE:

DORMDASH REPRESENTATIVE:

William Struloeff

Date: 10/24/2025